



## POLICE DEPARTMENT

April 14, 2011

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Patricia Rogers  
Tax Registry No. 911373  
Police Service Area No. 1  
Disciplinary Case No. 86191/10

-----

The above-named member of the Department appeared before the Court on February 9, 2011, charged with the following:

1. Said Police Officer Patricia Rogers, while assigned to Headquarters Security, on or about September 4, 2009, while off-duty, did engage in conduct prejudicial to the good order, efficiency, or discipline of the Department to wit: said Police Officer, while at the San Francisco International Airport, was rude and discourteous to employees at said airport during the screening process, delayed the search of her bags, and caused the response of civilian airport managers, transportation security officers, San Francisco Police Department, and Paramedics, and falsely alleged that she was being illegally detained.

### P.G. 203-10, Page 1, Paragraph 5 – GENERAL REGULATIONS

2. Said Police Officer Patricia Rogers, while assigned as indicated above, on or about September 4, 2009, was discourteous to Transportation Security Officers to wit: during the screening process at San Francisco International Airport, said Officer stated in a rude and hostile manner, in sum and substance, "How do I know you guys are not imposters for the TSA" thereby preventing the screening of said Officer's bags.

### P.G. 203-09, Page 1, Paragraph 2 – GENERAL REGULATIONS

3 Said Police Officer Patricia Rogers, while assigned as indicated above, on or about September 4, 2009, was discourteous to Supervising Transportation Security Officer [REDACTED] to wit during the screening process at San Francisco International Airport, said Officer stated in a rude and hostile manner, "I'm fucking NYPD, this is bullshit!"

P G 203-09, Page 1, Paragraph 2 – GENERAL REGULATIONS

4 Said Police Officer Patricia Rogers, while assigned as indicated above, on or about September 4, 2009, was discourteous to Paramedics to wit after said Officer claimed that she was having chest pains at the San Francisco International Airport, refused medical attention and stated in a loud and rude manner, "Get him away from me" while pointing to one of the paramedics and refused to sign off on the form declining medical attention

P G 203-09, Page 1, Paragraph 2 – GENERAL REGULATIONS

5 Said Police Officer Patricia Rogers, while assigned as indicated above, on or about September 4, 2009, while off-duty, did fail to notify the Operations Unit of an unusual police occurrence to which she was a participant

P G 212-32, Page 1, Paragraph 2, Note – OFF DUTY INCIDENTS INVOLVING  
UNIFORMED MEMBERS OF THE SERVICE

The Department was represented by Vivian Joo, Esq , Department Advocate's Office, and Respondent was represented by Michael Martinez, Esq

Respondent, through counsel, entered a plea of Not Guilty to the subject charges A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review

DECISION

Respondent is found Guilty of Specification No 5 and Not Guilty of Specification Nos 2-4 She is found Guilty in Part of Specification No 1

SUMMARY OF EVIDENCE PRESENTED

The Department's Case

The Department called Sergeant Richard Miller as a witness

Sergeant Richard Miller

Direct Examination

Miller had been a member of the Department for 11 years and was assigned to the Investigation and Evaluation Section (a unit of the Patrol Services Bureau, Respondent was assigned at the time of the incident to the Headquarters Security Unit, also part of Patrol Services) He was assigned to investigate Respondent's case, which involved an alleged incident at the San Francisco International Airport (SFO)

As part of his investigation, Miller spoke to members of the San Francisco Police Department (SFPD), San Francisco Fire - ), transportation security officers (TSO), from both the Transportation Security Administration (TSA) and a private firm, Covenant Aviation Security (CAS), and Continental Airlines personnel These conversations were by phone (see Department's Exhibit [DX] 1a-f, recordings, DX 2a-j, transcripts of the recordings)

Interviews of SFO Personnel

"[REDACTED]" (see DX 1d, recording, DX 2h, transcript)

"[REDACTED]" was a lobby agent for Continental Airlines He stated that Respondent was very rude She did not want to use the kiosk, which printed the boarding passes He suggested

she try it, but she instead stood there and yelled, "Why isn't no one helping me?" "██████" was dealing with over 200 people at the time

Respondent was asking why the baggage handler could not help her, and was very demanding "██████" said that Respondent followed him to the counter and began acting strangely He explained that she treated everyone as "her servant " Respondent kept asking for his last name over and over, which "kind of gave [him] the creeps " When he would not give it, she asked other agents his last name

"██████" denied that he had labeled Respondent as SSSS, or Quad-S (This stands for Secondary Security Screening Selectee, meaning that the passenger is selected for more scrutiny than the average individual ) "██████" did not recall speaking to the security agents about her

"██████" refused to give his last name, but noted that he was easy to locate if necessary because he was very tall and the only black Continental lobby agent

██████'s job was to check passports and identification (ID) cards to make sure they were legitimate, and to verify passengers "tickets" (i.e., their boarding passes) ████████ checked Respondent's "ticket" that day She did not notice that Respondent was acting "funny "

After ████████ checked Respondent's ████████ Quad-S her because she was acting "weird," "anxious" and "jittery," and was rude and hostile at the ticket counter When ████████ wrote SSSS on Respondent's ticket, she asked why Respondent was escorted to the SSSS screening area, and ████████ "could hear her from my station to all the way to where she was taken to "

[REDACTED] (see DX 1b, recording, DX 2c, transcript)

[REDACTED] was a CAS supervisor. Screeners notified him that an airline representative had selected Respondent to be a Quad-S passenger. Respondent began yelling while she was in a corral waiting to be screened. She kept saying that she was being harassed, and she asked for everybody's names approximately 20 times during the initial waiting period.

After giving Respondent his name, [REDACTED] told her not to worry and that he would give her all of the necessary information to make a complaint after the screening.

Respondent said that she was being held against her will. [REDACTED] believed she said that she could not see her belongings because "these Asians" – not "agents" – were blocking her. Some of the TSOs [REDACTED] supervised were Asian.

Immediately before the screening, Respondent told [REDACTED] "I'm NYPD."

While in the screening area, Respondent was told that the [REDACTED] - [REDACTED] bags, so they needed to be further inspected.

[REDACTED] left the [REDACTED] to let female TSOs do the screening. After a few minutes, the TSOs called [REDACTED] back in because they said that Respondent would not allow them to touch her or her belongings.

[REDACTED] stopped the screening and told Respondent that he was going to notify his manager. Respondent replied, "I'm fucking NYPD and this is bullshit."

[REDACTED] explained that Respondent seemed "crazy," as though she had not taken her medication. She was jumpy and anxious.

became upset and said she wanted her bags screened in private. The screening was stopped and moved into the private room. The TSOs also found a small knife in her bag.

\_\_\_\_\_ for the identification information of the TSOs. Respondent told \_\_\_\_\_ that she was in law enforcement and stated that she had her credentials. Respondent said, "[W]ell I don't know if you're really a TSA agent, you can be fake." \_\_\_\_\_ called \_\_\_\_\_ to come in again.

\_\_\_\_\_ stated that at one point, Respondent was bothering other passengers and kept saying that she was being held against her will. After \_\_\_\_\_ told Respondent that the police were coming, she started to say that she could not breathe. \_\_\_\_\_ told Respondent to sit and relax, but she "didn't want to calm down."

After SFPD officers spoke to Respondent, \_\_\_\_\_ was asked to finish searching her bags. Respondent was calmer toward the end of the incident.

\_\_\_\_\_ (see DX 1b & 1f, recordings of two interviews, DX 2b & 2j, transcripts)

\_\_\_\_\_ was the Covenant manager on the day of the incident. When an "incident" occurred, the protocol was for both a CAS and a TSA manager to respond to the scene.

\_\_\_\_\_ did not know that Respondent was a member of the New York City Police Department (NYPD) prior to responding to the scene. When \_\_\_\_\_ arrived, Respondent told her that she \_\_\_\_\_. She also asked \_\_\_\_\_ whether she was with SFPD. \_\_\_\_\_ told Respondent that she was not, to which Respondent said, "[W]ell you need to step aside. You're civilian. You have no authority here." \_\_\_\_\_ then stepped back and told Respondent that SFPD was on their way.

[REDACTED] (see DX 1b, recording, DX 2e, transcript)

[REDACTED], a TSO, was asked to help her partner, [REDACTED], in conducting a "bulk item pat down" on Respondent. Respondent said multiple times that she did not want her breasts or genitals to be touched. [REDACTED] asked Respondent several times whether she wanted to go into a private room for the pat-down, but she did not answer yes or no. Finally, she said no, and [REDACTED] conducted a pat-down in the open area.

When [REDACTED] went to inspect the luggage, Respondent said that she did not want people to be able to see her dirty laundry. [REDACTED] again asked Respondent whether she wanted to go to a private screening room, but Respondent again would not answer, instead repeating that she did not want anybody to see her laundry. Respondent was "agitated" and "jittery."

[REDACTED] finally told [REDACTED] and [REDACTED] to take her and her belongings into a private screening room. [REDACTED] continued to screen her bags. As [REDACTED] - - - asked for her name, badge number, and for a pen to write down the names, [REDACTED] gave Respondent a pen. [REDACTED] told her that her badge was in sight. After asking [REDACTED] for her ID badge, Respondent said, "I don't know if maybe you guys are an impostor for TSA." [REDACTED] thought Respondent's continuous questioning was offensive, so she instructed [REDACTED] to stop screening.

[REDACTED] was asked to come back into the room. He instructed the two female agents to take Respondent out and wait while he called management.

[REDACTED] (see DX 1c, recording, DX 2f, transcript)

Respondent was passed off to [REDACTED] for additional screening after receiving the SSSS designation. [REDACTED] explained that when she and [REDACTED] began searching Respondent's bags, she

█████ described Respondent as disrespectful, impatient, "pretty aggressive," and having "a rough tone "

When Respondent asked █████ to use her phone to call 911, █████ refused Respondent began asking other individuals in the surrounding area to call 911 because she was being held against her will Respondent was not using profanity and did not seem intoxicated, "wasn't right " █████ stated that Respondent was free to leave the airport, but would not have been free to go to her gate

As Respondent was summoning passersby, she said she was having chest pains "and that she needed paramedics " After the paramedics arrived, Respondent said she did not want them anymore

█████ opined,

[I]n the beginning she wouldn't have been delayed that long if we had been able to continue the screening process But due to her saying no, she didn't want her bags and belongings to be checked, and then it turned into the other scene of, you know, I'm having heart trouble and all of that [T]hat extended the whole process out to be delayed further due to all of those activities

SFPD Sergeant █████ (see DX 1a, recording, DX 2a, transcript)

█████ was called to the scene by Covenant personnel after an argument ensued between the security workers and Respondent When █████ arrived, Respondent began yelling and cursing at them █████ asked for her ID, but she hesitated to give it to him and seemed to pull her ID back from him She identified herself as an N "[H]ey, if you're NYPD then you should understand how security is so important here at the airport And the way that you're acting, and cussing these people out, and yelling and screaming, is conduct unbecoming an officer "



██████████ (see DX 1d, recording, DX 2g, transcript)

██████████ was a manager for Continental Airlines. She stated that she was in the back office when another employee told her that a woman had “gone nuts” and wanted to see a supervisor. Before ██████████ could say hello, Respondent asked for her first and last name, which she provided. In return, ██████████ asked what Respondent’s name was, to which she replied, “That’s not for you to know.” ██████████ described Respondent as “very internally angry” and trying “not to explode.”

Respondent pointed to another Continental employee and said that he had her marked SSSS, causing her to have “a lot of grief” going through security. ██████████ asked the employee whether he had written SSSS on the ticket, which he denied.

██████████ spoke with TSA and Covenant agents, both of whom told her that it was her choice whether to have Respondent on the aircraft or not. ██████████ informed Respondent that in order to get onto the plane, she would need to understand that her behavior was inappropriate, and if she did not remain calm onboard, the plane would be turned around and she would be barred from Continental. Respondent refused to agree, but ██████████, believing she understood the situation, allowed her to board.

██████████ did not believe a Continental employee told security to Quad-S Respondent. She believed it was the knife found in her bag that led to the special designation.

The Respondent threatened that she would come back, and that “you haven’t heard the end of this.”

Respondent was saying things like "I'm being illegally detained I m a police officer This is an illegal detention " She did not say anything profane, however At one point, Respondent said she was having a heart attack and chest pains, and that she could not breathe [REDACTED] called an ambulance to the scene When the emergency crew arrived, Respondent said she did not want them to touch her [REDACTED] felt like Respondent was trying to make a false medical call in order to "jack everybody up " Respondent would not sign the form to refuse medical treatment, so [REDACTED] indicated on the form that she would not sign

[REDACTED] explained that they could have charged Respondent with disturbing the peace or unruly conduct (i.e., Disorderly Conduct) [REDACTED] the CAS agent-in-charge, said that she would make a complaint to NYPD as opposed to .

The incident drew to an end when the SFPD gave Respondent an escort out of the post-security area They did not receive any calls back to the security checkpoint

[REDACTED] was the paramedic on the scene treating Respondent She had made a medical complaint, but when [REDACTED] arrived, she did not want any treatment [REDACTED] eventually . . . - blood pressure

Respondent was "a bit loud," but [REDACTED] did not recall her using profanity She said, "Get him away from me," in reference to [REDACTED]'s partner His partner, who was black "backed off and tried to give her her space " He was only trying to get her basic information

Direct Examination, continued

During her official Department interview, Respondent told Miller that she did not notify the Department regarding the incident because she did not feel that she committed a crime. Respondent told Miller that she did not want the officers to inspect her dirty laundry, and was worried about whether her breasts or genitals would be touched. She was also unsure of who the officers were and said that they could be anybody.

Miller explained that TSA filed a separate report regarding the incident. The report was generated in the form of a warning letter to the Respondent which cited 49 C.F.R. § 1540.109 (2010), Prohibition against Interference with Screening Personnel. The regulation states "No person may interfere with, assault, threaten, or intimidate screening personnel in the performance of their screening duties under this subchapter."

Cross-Examination

Miller could not say with any certainty whether the individuals to whom he spoke were in the same room or not.

Respondent was not handcuffed during the incident, taken into custody, or summonsed. She was able to board her flight back to Newark, New Jersey.

DX 3 was the video surveillance from the Department of Homeland Security (DHS) (TSA is an agency of DHS). It was DHS that referred the complaint to the New York City Police Department, on October 8, 2009.

## Respondent's Case

Respondent testified on her own behalf

### Respondent

Respondent had worked in the Headquarters Security Unit for 14 ½ years. She was visiting California to go camping at Yosemite National Park. She was scheduled to return to the New York area on September 4, 2009, via Continental Airlines, on a 1 15 p.m. flight. She arrived at the airport at 11 00 a.m., returned her rental car, and went to the terminal.

Respondent was directed to use the kiosks. She considered herself a "world traveler" and was aware of how to use the machine, but it was not functioning correctly. She asked for assistance from [REDACTED] a Continental employee. Respondent explained that he looked annoyed and did not want to help, but was eventually successful at getting Respondent her "ticket." She checked her luggage at the counter and proceeded to the security line.

Because [REDACTED] seemed that he did not want to help Respondent, she asked him his name "for the future." She claimed at trial, however, that she was not planning to submit a complaint about him at that time. [REDACTED] refused to give Respondent his last name, and walked away after making a face at her.

The first TSO with whom Respondent interacted allowed her to pass after checking her driver's license and ticket. She did not mark Respondent's ticket in any way. After Respondent had moved a few feet past her, the TSO received a phone call and looked at Respondent. The TSO got off the phone and asked for Respondent's ticket and ID again. Then, the TSO wrote

four S's on the ticket. She told Respondent that "this is a random check, but that she would get to go to the front of the line."

██████ the heavy, tall, Hispanic TSO seen in the video (DX 3) escorted Respondent to the front of the security line. Her bags were placed on the table. Although Respondent asked why she was being stopped, nobody would tell her anything. Respondent suspected that "██████" had told the TSOs to stop her because she had asked him for help so many times.

Respondent conceded that the TSOs found a "small pocketknife," with a blade no more than two inches long, in her carry-on bag. She had forgotten about this item, which she used to clean her fingernails or to cut string while camping. She told the TSOs she would mail it back to herself, and they gave no indication that she was in trouble for having the knife.

Respondent complied with the directions of the TSOs when asked, and submitted to a physical search. She asked that her bags be searched in private because she had a significant amount of dirty laundry in her bag and did not want it out in the open for everyone to see. Two female TSOs, ██████ and ██████ took Respondent into a private screening room that was not visible on the video. Respondent told the agents that she believed she was there because "██████" had said something negative about her in retaliation.

Respondent denied saying, "[H]ow do I know you guys are not imposters for the TSA." She did say, to the TSO with her ID badge turned backward, "[H]ow do I know who you are." Respondent was in the room for approximately four minutes. She never told the agents not to search her bag, nor did she touch her bag.

Because she was not getting responses as to why she was being searched, Respondent asked to speak with a supervisor. ██████ was not interested in hearing what had happened at the Continental counter and did not explain what was going on. Respondent

conceded that she might have said something like “[G]et him away from me” in reference to someone. She explained that she said that because wanted to speak in private with [REDACTED]

Respondent refused to sign any medical forms because she did not have time to read through them before her flight was scheduled to leave. [REDACTED] released Respondent at that time, 20 to 25 minutes after he had arrived.

Respondent returned to the pre-security area, mailed herself the knife, and went to the Continental counter to explain what had happened. She testified that when she was in the room with the two TSOs, one of them told her that a Continental employee had called Covenant. Respondent spoke to [REDACTED] about the situation. Both [REDACTED] and the security agents gave

Respondent was never handcuffed or given a summons. She did not contact the [REDACTED] because she felt she had not done anything wrong and was the victim in the situation. Respondent stated that while she was at the airport, nobody told her she was doing something wrong, and no one said she had broken any laws. The first time she knew the Department wanted to speak with her was in the course of her official Department interview on December 9, 2009. The next month, she received a letter from Homeland Security. It “was something to do with my behavior” and quoted certain laws. DHS asked her to contact them and tell them what had occurred, which she did by letter. No further action was taken against her.

Respondent maintained that she never prevented the TSOs from searching her bags, and that she had complied with all of their requests. She felt as though she was being illegally detained.

told [REDACTED] that she was a member of law enforcement and that she had her ID on her in case that would have been any help in the situation

[REDACTED] ushered Respondent to a separate area and asked another agent (Miller identified him as [REDACTED] a CAS agent interviewed by TSA but not Miller) to watch over her [REDACTED] was unresponsive to Respondent's request for her telephone out of her bag Respondent wanted the police to respond because she had not gotten any answers as to why she was being held

At that point, Respondent began "not feeling good " She suffered from [REDACTED] [REDACTED], a heart condition where, at stressful times, her heart "beats out of control " The Department was aware of this condition

Respondent then asked two passersby to call 911 because she felt as though she was not free to leave Nobody had told her that the police had been called, or that an ambulance was on the way

When the police arrived, they asked for Respondent s ID She denied that when [REDACTED] asked for the ID, she pulled it back from him and that she would not let him have it, until finally giving it to him She admitted that "I hold it up and he takes it from my hand " (The video shows that Respondent and the SFPD officers were separated by a table She held the card over the table, but did not hand it to [REDACTED] She put it back near her pocket, then handed it to one of the officers [see DX 3 at 21:00]) While [REDACTED] consulted with [REDACTED], Respondent explained the situation to Police Officer [REDACTED] He seemed to be the only one listening to her

After medical assistance arrived, Respondent insisted, "There was one man I was dealing with," [REDACTED], who was in uniform at the time He took Respondent's blood pressure, which was high Respondent did not remember any other medical workers that were present at that time, but admitted that she might have observed the male black visible in the video She

On cross-examination, Respondent conceded that she had worked at the Police Headquarters visitor security station for approximately 14 ½ years, and was aware of the importance of security

Respondent admitted that she was upset slightly when she was asking what was going on and not getting answers. She admitted that [REDACTED] that at the end of the screening, they would provide her with the names of all of those involved, but she kept asking for their names anyway. Respondent did not remember whether [REDACTED] told her that she would be free to leave once they had finished searching her bags. [REDACTED] [REDACTED], [REDACTED], [REDACTED], and [REDACTED]

Respondent admitted telling the two women in the screening room, and [REDACTED], that she was a member of law enforcement.

When Respondent's heart started beating irregularly, she wanted the police to respond. Because the agent assigned to guard her was ignoring her, she felt that she had no choice but to ask passersby for help. She told the individuals that she was not feeling well, could not leave, and requested that they call 911. Respondent maintained that she was illegally detained because someone was retaliating against her without any explanation.

Respondent testified that [REDACTED] had not told her that the male black was his partner, or that he would be taking basic information from her. Although she testified that she did not want to sign the form because it would take too long and she would miss her flight, she admitted stating during her official Department interview that she thought she was going to miss her flight anyway.

Respondent admitted that after making her complaints to [REDACTED] the supervisor told her that she would not be able to board the plane while exhibiting her current behavior.



Respondent conceded that the DHS letter stated she had interfered with airport personnel

Upon questioning from the Court, Respondent stated that the allegations that she did not respond to the security officers were false. In fact, it was her suggestion that the bag inspection take place in a private room.

Respondent denied using the terminology ‘illegally’ or ‘unlawfully detained,’ but then indicated that she did use this term when speaking to [REDACTED]. Respondent told a woman she had asked to call 911 ‘that I wasn’t allowed to leave’ and ‘wasn’t feeling good.’

## FINDINGS AND ANALYSIS

### Introduction

This case places into stark relief an experience that many 21st-century Americans find unpleasant at best: the airport. On Labor Day weekend in 2009, Respondent was on her way home from a camping trip to Yosemite National Park, flying out of San Francisco International Airport back to the New York area on Continental Airlines. She went to the ticket counter to get her boarding pass, but was told she had to use a kiosk to get it. Respondent testified that the kiosk was not working correctly, so she asked a Continental agent, “[REDACTED] R,”<sup>1</sup> for help. She stated that “[REDACTED]” was rude to her, “[REDACTED]” said that it was Respondent that was rude to him.

This opening encounter set the stage for the entire incident, and also explains the whole thing in a nutshell. The airport employees, consisting of personnel from Continental, Covenant

---

<sup>1</sup> In what strikes the Court as an unusual situation, the Continental supervisor at SFO whom the investigator spoke to regarding this matter refused to reveal [REDACTED]’s last name, as did [REDACTED]. The investigator did not attempt to get the individual’s complete name from higher-level staff, like Continental’s corporate human resources department. Yet the Department seeks to have the Court rely on [REDACTED]’s account. The Court declines to put great stock in the account of an airport employee that would not give his full name during a police investigation concerning an incident at the airport.

Aviation Security (a private contractor that provided screening services and transportation security officers), and the San Francisco Police and Fire Departments, found Respondent to be odd, strange, and rude. Respondent found the employees to be rude and harassing toward her. The truth is somewhere in between. It is apparent that several of the airport employees took offense at the complaints made by an upset passenger. Some of those complaints were – but some were expressed with a lack of civility or good judgment.

#### Specification No. 1

The first specification alleges that Respondent was “rude and discourteous” due to several acts “during the screening process.” She allegedly “delayed the search of her bags, and caused the response of civilian airport managers, transportation security officers, San Francisco Police Department, and Paramedics, and falsely alleged that she was being illegally detained.” The specification, therefore, actually charges several distinct acts of misconduct.

The first issue is whether Respondent “delayed the search of her bags,” but the question actually is more complex than that. To be found Guilty of this part of the specification, the Department was required to do more than prove that Respondent took an action that delayed the search of her possessions. That act itself had to be inappropriate. If the TSOs decided to delay the search for reasons solely attributable to Respondent’s legitimate conduct, she is not liable. Members of the Department are not subject in their off-duty affairs to a generalized heightened level of politeness. Cf. Case No. 84581/08, signed Nov. 15, 2010, p. 12 (angry or profane language during an argument regarding non-Department matter between off-duty member of the Department and non-member, without more, is not misconduct), Case No. 81570/06, signed Dec. 28, 2006, pp. 17-18 (even if off-duty member had called a civilian a prick during argument in a

store, this purely verbal

The question is whether Respondent took any legitimate issues to an impermissible level Cf Case No 73327/98, signed Sept 4, 1999, p 12 (off-duty member, during argument with airline employees about problem with her tickets, "was within her rights as a private citizen to express her displeasure with the airline ")

To the extent that credibility determinations must be made between the airport employees and Respondent, the Court generally has resolved them in Respondent's favor There were nine employees at the airport that the investigator interviewed "[REDACTED]" the Continental Airlines lobby agent, [REDACTED], the Covenant TSO that checked Respondent's boarding pass and marked it SSSS, [REDACTED] and [REDACTED], the Covenant TSOs that conducted the pat-down and detailed search of Respondent and her belongings, [REDACTED], their supervisor, [REDACTED], his supervisor; SFPD Sergeant [REDACTED], FDSF paramedic [REDACTED] and [REDACTED], the Continental supervisor None appeared for trial, so the Department relied on their recorded and transcribed statements to the investigator

Although hearsay is admissible in this forum, see Matter of Ayala v Ward, 170 A D 2d 235 (1st Dept 1991), there are significant reasons for caution when considering the credibility of two divergent accounts Cf Case No 77005/01, signed May 27, 2002 (hearsay declarations are insufficient to support findings of guilt in cases that pose close questions of credibility) In light of these employees failure to testify, the Court cannot observe their demeanor, explore possible motives to lie, or assess the credibility of their accounts after the test of cross-examination

[REDACTED] and [REDACTED] were the two female TSOs that conducted the Quad-S search of Respondent This is seen on the first file on the DHS surveillance video (contained on a compact disc, DX 3), where Respondent is standing with her back to the camera, arms outstretched, in an area open to public view, past and to the side of the main area containing the "corral" (the line

passengers first stand in while waiting to pass through security) and the screening machines [REDACTED] stated that Respondent first asked whether the TSOs would be touching her breasts or genitals [REDACTED] responded, "[N]o ma'am That's not what we do when we do a bulk item pat down " Respondent was offered a private screening, but kept asking that same question When the supervisor, [REDACTED], came over, Respondent said "just go ahead and do it " [REDACTED] and [REDACTED] then began their search of Respondent's carry-on bags Respondent protested that she did not want her dirty laundry being seen by passersby, so the screeners again offered her a private room Once again, according to [REDACTED], Respondent did not answer, instead repeating her worry about her laundry " \_ .-.. . take her into a private room

In the private room, which was not videoed, Respondent kept asking [REDACTED] and [REDACTED] for their names, but what they both remembered was Respondent's comment concerning whether they truly were TSA agents (which in fact, they were not) - \_ - \_ course of asking for their names, she mentioned that she needed them because she otherwise would not know if they were, in fact, TSA officers [REDACTED] asserted that [REDACTED] and [REDACTED] told him that Respondent would not allow them to touch her or her baggage, but the two female screeners did not relate this to the investigator

The Court does not see what Respondent did at or before this point that prevented the TSOs from completing the search of the bags Nevertheless, [REDACTED] judged that the screening was not finished, and, as seen on the second video file on the disc, he took Respondent, along with [REDACTED], [REDACTED] and the luggage, to a second area past and to the side of the corral and security machines This second area was next to the flow of where arriving passengers were coming from their gates to exit the secure area [REDACTED] told Respondent to wait there with her bags [REDACTED] and [REDACTED] are seen in the video [REDACTED] stated in his interview that he informed

his supervisor, [REDACTED], of the situation. A female employee wearing a red blazer is seen in the video, so the Court believes this to be [REDACTED] [REDACTED] and Respondent spoke for some time.

It is important to note that the TSOs had deemed the search of Respondent's bags to be uncompleted at this time. Whether they could have decided otherwise is not an appropriate area for this Court to examine. *Cf. Case No. 83140/07*, signed Dec. 18, 2008, pp. 39-40 (it was not appropriate for this tribunal to rule on a ruling of Department of Citywide Administrative

Services - NYPD member had wrongfully copied down test questions at a civil service examination). It is evident that in the employees' view, the search was not over. [REDACTED] mentioned in her interview that they informed TSA personnel at that point. Several men in suits appear in the video after this point, wearing ID tags and conferring with [REDACTED], but they were not identified at trial. At approximately 15:00 on the second file, Respondent appears to reach for her carry-on bag, which was on a table, but [REDACTED] indicates that she cannot have it back yet. At approximately 22:30, [REDACTED] is seen searching one of Respondent's bags.<sup>2</sup>

Up until the point of being taken to the second area, the Court finds no misconduct in Respondent's actions. It is what occurred after that is troubling. Respondent began imploring departing and arriving passengers, asking them to call 911 and stating that she was being illegally or unlawfully detained. She felt that [REDACTED] had placed her on the SSSS list out of spite, as a result of her complaining about his assistance at the kiosks.

The "illegally or unlawfully detained" remark was a false and inappropriate statement whether or not Respondent believed it to be true. This Court is not here to judge the customer service skills of the Continental employees. - - - - -

---

<sup>2</sup> A female TSO, wearing a red sweater vest, is seen in both the first and second files. Because [REDACTED] indicated that she was present when Respondent "started bothering passengers" (DX 2e, [REDACTED] transcript, p. 6), which occurred in the second file, and because a female TSO is observed searching Respondent's bags in the second file, the Court has concluded that this is [REDACTED].

however, demonstrating that [REDACTED] had her marked as SSSS for a reason that would make the detailed search of her unlawful. In any event, it was Respondent's subsequent conduct that caused the TSOs to have her wait at the second roped-off area, and it was only here that the situation reached a point where the Court has found that she committed misconduct. Similarly, Respondent has not shown that the TSOs' perception of her as odd or resistant, leading to that extended wait, was unlawful. Most importantly, nothing in Respondent's testimony or on the video justified her hectoring of bewildered fellow passengers, telling them that she was being illegally detained.

The final portion of the specification alleges that Respondent "caused the response of civilian airport managers, transportation security officers, San Francisco Police Department, and Paramedics." The Court dismisses this portion of the specification because it could not have constituted misconduct, even if true. Respondent did ask passersby to call 911, although [REDACTED] stated that it was Covenant staff that contacted the police dispatcher. In any event, this Department encourages people to seek police assistance if they feel it is necessary.

As to allegedly causing the response of TSOs, Respondent had the right to ask questions about her treatment. It was this, not shouting out to passersby, that led [REDACTED] to call for [REDACTED]'s assistance. Notably, it was a Covenant employee that marked Respondent's boarding pass as SSSS. [REDACTED] and [REDACTED] were involved because of that action. Thus, it was Covenant, not Respondent, that "caused the response of transportation security officers."

As such, the Court finds the Respondent Guilty of that portion of Specification No. 1 that refers to her delay of the search and allegation that she was being illegally detained, and the inappropriate manner in which her complaints were conveyed.

Specification No. 2

The second specification charges that Respondent stated to the TSOs, 'in a rude and hostile manner, in sum and substance, 'How do I know you guys are not imposters for the TSA' thereby preventing the screening of said Officer's bags." This specification, in essence, has three components: that Respondent made this remark, that it was misconduct for Respondent to make this remark, and that the making of the remark prevented her bags from being screened.

█████ stated that, in the private screening room, Respondent said to █████ ' [C]an I see your badge? I don't know if maybe you guys are an impostor for TSA.' █████ stated that Respondent said, "[W]ell I don't know if you're really a TSA agent, you can be fake, and all this stuff." Respondent, however, testified that she asked one of the TSOs, whose ID badge was facing the wrong way on the lanyard, that she needed their names because otherwise she would not know if they truly were whom they said they were.

As noted, the Court credits Respondent's version of the incident. But in any rendition of █████ was rude or discourteous within the meaning and scope of the Patrol Guide. Respondent legitimately wanted to learn the identities of █████ and █████ so she could complain about being placed on the SSSS list. One of the TSO's ID tags was turned in a way that prevented Respondent from learning her identity. It is evident that █████ and █████ were trying to perform the bag search without engaging Respondent to the extent possible. It was neither rude nor discourteous, however, for Respondent to point out *why* she needed their identities so she would know who she was dealing with. "... .

Respondent is found Not Guilty of Specification No. 2.

Specification No 3

In the third specification, Respondent is charged with telling [REDACTED], the uniformed supervising TSO, "I'm fucking NYPD, this is bullshit!" Respondent admitted stating that she was a member of law enforcement in order to see if that would move the situation along. She denied using profanity.

Only Godinez mentioned the particular use of profanity by Respondent listed in the specification. "[REDACTED]l," [REDACTED], [REDACTED]d, [REDACTED] [REDACTED] and [REDACTED] were asked about this by the investigator, but all stated either that Respondent did not curse or that they could not recall

[REDACTED], the SFPD sergeant, stated that when the police arrived, Respondent "was yelling, and

[REDACTED] and cussing us out." Miller, the NYPD investigator, confirmed, "She was cursing you out too?," and [REDACTED] answered, "Yeah. [REDACTED] tried to take Respondent's Department ID and she would not give it to him. [REDACTED] told her, "[H]ey, if you're NYPD then you should understand

how security is so important here at the airport. And the way that you're acting, and cussing these people out, and yelling and [REDACTED] - [REDACTED] conduct unbecoming an officer." However, when [REDACTED] was recounting what occurred once he took Respondent's ID from her hand, and Miller asked, "[A]ny foul language"? [REDACTED], "There was a [REDACTED] she wanted to but she didn't say, uh, anything that was profane." Respondent, at trial, denied using any profanity.

The Court does not find [REDACTED]'s statements to be corroborative of [REDACTED]'s account. [REDACTED] stated that after [REDACTED] and [REDACTED] told him what happened in the private room, he told Respondent that the screening was unfinished and he needed to contact his superiors. It was "[r]ight then at that time" that Respondent said, "I'm fucking NYPD and this is bullshit." He then contacted [REDACTED]. [REDACTED] however, is seen on the video arriving at the second roped-off area before SFPD personnel arrive. Thus, whatever [REDACTED] heard when he arrived was not the



same thing [REDACTED] described to Miller. In any event, without the ability to have [REDACTED] respond to examination in court, this Court is unclear on whether he did or did not hear Respondent use profanity.

The Court otherwise credits Respondent's sworn account as opposed to the uncontroverted hearsay of [REDACTED]. She was visibly upset, but there was no other proof that she used profanity. As such, the Court finds her Not Guilty of Specification No. 3.

#### Specification No. 4

paramedics. Allegedly, after Respondent "claimed that she was having chest pains," she refused medical attention, then "stated in a loud and rude manner, 'Get him away from me while pointing to one of the paramedics,'" and, finally, "refused to sign off on the form declining medical attention." Again, this specification contains several components:

The Department was not claiming, exactly, that Respondent was faking when she said that she was having chest pains. She testified that she had a [REDACTED] condition, [REDACTED], which can lead to an [REDACTED]. There is no evidence that she was lying about this at trial or at the airport. Rather, she testified, she wanted to make her plane after [REDACTED] took her blood pressure, which was high, and they discussed it. The Department's position seems to be that once paramedics are called for, it is discourteous for a member of the Department to refuse their assistance.

The Court rejects the Department's position. In essence, Respondent had chest pains, she was treated, and she decided to move on, attempting to return to the pre-security area, mail

herself the small pocketknife found in her bag, go back through security, and make her flight. It was not discourteous for a grown woman to decide that the situation and her [REDACTED] had calmed down enough, and that making her flight was a higher priority than any further medical attention.

The Department also alleged that it was discourteous for Respondent to refuse to sign the paramedics' form confirming that she declined medical attention. The Department provided no authority for their position that this was discourteous and gave no explanation as to why Respondent or anyone else would be obligated to sign the form.

Finally, the Department alleged that it was discourteous for Respondent to say, referring to one of the treating paramedics, "Get him away from me." As noted, Respondent was perfectly within her rights to refuse medical treatment or to sign a given form. Thus, she was also within her rights to refuse help from a given employee.

As such, the Court finds the Respondent Not Guilty of Specification No. 4.

#### Specification No. 5

The fifth specification charges Respondent with failing to notify the Operations Unit, pursuant to Patrol Guide § 212-32, of the airport incident, allegedly an unusual police occurrence that occurred outside New York City.

Respondent argued that she was not required to report the incident at the airport because she was the "victim" of what occurred. That is not the rule. See Case No. 81607/06, signed July 24, 2007 (officer's status as victim of domestic violence after altercations with her boyfriend did not absolve her from responsibility of reporting), *Case No. 86193/10*, pending before Police Comm r as of Dec. 22, 2010 (officer that had been victim of domestic violence was required to

to fly. She also attempted to hector several passersby into interfering. She announced, . . . and wrongfully, that she was being illegally detained. She failed to notify the Operations Unit of this incident, to which local police responded.

The Department requested a penalty of the forfeiture of 30 vacation days. Perhaps it was basing its argument on 73327/98, supra, which also involved an incident at an airport and resulted in a 30-day penalty. There, however, there was a ticketing problem at the gate. The member stood in front of the gate and stated that if she could not board the aircraft, no one else was going to either. She thus prevented the boarding of the aircraft, fought with officers, and was placed under arrest.

The instant case is not as serious. The video, instructive in so many ways, is so here as well. Respondent was angry and upset, but she was not violent. Perhaps most importantly, the airport staff seemed to recognize that Respondent, although she caused a problem, posed no serious threat, and both Homeland Security and the airline allowed her to fly. She made her flight. Thus, the Court recommends that Respondent forfeit 15 vacation days as a penalty.

Respectfully submitted,

**APPROVED**  
NOV 23 2011  
*Raymond W. Kelly*  
RAYMOND W. KELLY  
POLICE COMMISSIONER

*David S. Weisel*  
David S. Weisel  
Assistant Deputy

Trials

do more than call her command and request emergency day off without explaining what happened) In fact, a crime is not a predicate event to the responsibility to report See Case No 81378/05, signed Feb 10, 2009 (officer should have reported accidentally pushing his [REDACTED] into a dog cage, causing a large bloody gash, as the incident occurred within the context of ongoing domestic problems)

It is difficult to state a comprehensive rule as to what constitutes an unusual police occurrence, but one important guideline is if the police respond to the scene of a dispute Here, SFPD personnel were requested, either by Respondent, the TSOs, or both Four officers are seen on the video responding to the scene They had extensive interactions with Respondent regarding her Department ID card and the search process [REDACTED] indicated that it was only her status as a fellow officer that prevented her from receiving a summons or citation If nothing else, it was the police involvement that made the ongoing dispute between Respondent and the TSOs into an "unusual police occurrence" within the meaning of the Patrol Guide Accordingly, the Court finds Respondent Guilty of Specification No 5

#### PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined See Matter of Pell v Board of Education, 34 N Y 2d 222 (1974) Respondent was appointed to the Department on June 30, 1992 Information from her personnel file that was considered in making this penalty recommendation is contained in an attached confidential memorandum

The Respondent has been found Guilty of causing an incident at the San Francisco International Airport Her actions led the transportation security officers to halt the screening of her carry-on baggage, requiring a sign-off from Homeland Security staff before she was allowed

POLICE DEPARTMENT  
CITY OF NEW YORK

From Assistant Deputy Commissioner – Trials  
To Police Commissioner  
Subject CONFIDENTIAL MEMORANDUM  
POLICE OFFICER PATRICIA ROGERS  
TAX REGISTRY NO 911373  
DISCIPLINARY CASE NO 86191/10

Respondent received an overall rating of 3.5 “Highly Competent/Competent” on her last three annual performance evaluations. She has been awarded three medals for Meritorious Police Duty. [REDACTED]

[REDACTED] Due to numerous internal investigations, she was placed on Level-II Discipline Monitoring in March 2010. Respondent has no prior formal disciplinary record.

For your consideration



David S. Weisel  
Assistant Deputy Commissioner – Trials